

Multiple Choice (10 marks)

1. American realists argued that formalism devalued the authority of the judge to make law, because:
 - (a) Judicial decisions are less important than legislation.
 - (b) The structure of legal reasoning is flawed.
 - (c) Judges are not allowed to interpret the law, only apply it.
 - (d) Formalism does not allow for moral considerations in the judiciary process.
 - (e) Formalism treats legal reasoning as syllogistic reasoning.
2. Which of the following cases best illustrates the 'living instrument principle' used by the European Court of Human Rights?
 - (a) McCann v UK (1995)
 - (b) Soering v UK (1989)
 - (c) A v UK (2009)
 - (d) Marper v UK (2008)
 - (e) Goodwin v UK (2002)
3. Which statement is closest to characterizing the principal difference between the positions adopted by Hobbes and Locke?
 - (a) They adopt different attitudes towards the role of the courts in maintaining order.
 - (b) They disagree about the role of law in society.
 - (c) They have opposing views about the nature of contractual obligations.
 - (d) They differ in respect of their account of life before the social contract.
4. There is a voting law that is going to be reviewed by the court. If the law is upheld, what must be true?
 - (a) The law is necessary to achieve a compelling government purpose.
 - (b) The law is substantially related to an important government purpose.
 - (c) The law is rationally related to a legitimate government purpose.
 - (d) The law is substantially related to a legitimate government purpose.
5. Which one of the following schools supports the view that a custom becomes law when it receives the stamp of judicial recognition by courts
 - (a) Critical Legal Studies School

- (b) Legal Realism School
- (c) Historical School
- (d) Natural Law School
- (e) Analytical School

True / False (10 marks)

Answer True or False

6. True or False: The Sociological School of jurisprudence asserts that law is solely derived from governmental commands and authority.
7. True or False: Legal positivism claims that law is inherently just and aligns closely with moral standards, viewing them as inseparable.
8. True or False: Difference feminism posits that women emphasize contextual understanding, while men prefer abstract, neutral concepts of justice.
9. True or False: Hart's distinction between 'being obliged' and 'having an obligation' effectively illuminates the concept of a rule in legal theory.
10. True or False: Leopold Pospisil identifies justice as the fourth element manifested by law, alongside authority and universality.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the concept of natural law as articulated by Spinoza, focusing on its foundations in human nature and societal needs. How does this perspective influence constitutional law?
12. Discuss the nature of grand jury proceedings in the context of constitutional law, specifically addressing the implications of the absence of a right to Miranda warnings.

End of Paper